

-

File No.: EXP202409610

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 01/07/2024, the Spanish Agency for Data Protection became aware of the dissemination by A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A.) through (...) ('A.A.A.') of a publication referring to B.B.B., along with the following message:

"(...)"

Along with the publication, dated ***FECHA.1, the following personal data appear:

- (...). The following personal data are legible:

o Name and surname: B.B.B.

o DNI: ***NIF.2

o Address: ***DIRECCION.1

SECOND: On 02/07/2024, (...), in which the publication ('A.A.A.') was made (...).

THIRD: On 02/07/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Articles 5.1.c) and 9 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR. Furthermore, the aforementioned initiation agreement ordered the accused party to adopt the provisional measure consisting of the temporary suspension of the processing of personal data subject to the complaint through the removal of the published content on (...) (A.A.A.). This provisional measure was to be adopted within a maximum period of seven calendar days from the notification of the initiation agreement of the sanctioning procedure.

Said initiation agreement, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was attempted to be notified by postal mail at the address ***DIRECCION.2 on 26/07/2024, resulting in "Returned to Origin by Unknown"; and at the address ***DIRECCION.3, resulting in "Returned to Origin by Unknown" on 08/08/2024.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Finally, and in accordance with the provisions of Article 44 of the LPACAP, it was notified by announcement published in the BOE on 14/08/2024.

FOURTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the accused party.

FIFTH: After the period for adopting the agreed provisional measure had also elapsed, on 03/09/2024, this Agency accessed (...) ***APP.1 of (A.A.A.) and verified that the publication subject to the complaint remained accessible.

(...).

SIXTH: On 04/09/2024, the Director of the Spanish Agency for Data Protection issued an agreement adopting a provisional measure requiring ***APP.1 to immediately remove the publication subject to the complaint, due to the non-compliance with the provisional measure imposed on the accused party in the initiation agreement of the present sanctioning procedure.

SEVENTH: On 05/09/2024, the instructor of the procedure issued a resolution proposal in which it was proposed to impose a fine of €10,000 on the accused party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Article 5.1.c) and 9 of the GDPR,

classified under Article 83.5 of the GDPR. Furthermore, in the aforementioned resolution proposal, it was proposed to make definitive the measure consisting of the suspension of the processing of personal data subject to the complaint through the removal of the published content on ***APP.1 of ('A.A.A.').

This resolution proposal, in accordance with the rules established in the LPACAP, was attempted to be notified by postal mail at the address ***DIRECCION.3, resulting in "Returned to Origin by Unknown" on 11/09/2024; and at the address ***DIRECCION.2 on 19/09/2024.

Finally, and in accordance with the provisions of Article 44 of the LPACAP, it was notified by announcement published in the BOE on 03/10/2024.

EIGHTH: On 25/09/2024, this Agency accessed ***APP.1 of (A.A.A.) and verified that the publication subject to the complaint had been removed.

(...)

NINTH: The aforementioned resolution proposal was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the accused party (A.A.A.).

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/16

PROVEN FACTS

FIRST: The respondent is the holder of ***APP.1 'A.A.A.'. On ***DATE.1, the respondent published the following message on ***APP.1:

"(...)"

Alongside the publication are (...) with the following personal data:

- (...). The following personal data is legible:

o Name and surname: B.B.B.

o ID: ***NIF.2

o Address: ***ADDRESS.1

SECOND: (...)

THIRD: By agreement to initiate sanctioning procedure dated 02/07/2024, the respondent was ordered to adopt the provisional measure consisting of the removal of the content published in (...) which is the subject of the claim. This provisional measure was to be adopted within a maximum period of seven calendar days from the notification of the agreement to initiate the sanctioning procedure.

As of 03/09/2024, after the period granted for compliance with the indicated provisional measure had elapsed, the publication subject to the claim remained accessible on ***APP.1 of (A.A.A.).

FOURTH: (...)

FIFTH: By agreement to adopt a provisional measure dated 04/09/2024, ***APP.1 is required to immediately temporarily remove the publication subject to the claim, due to the non-compliance with the provisional measure dated 02/07/2024 imposed on the respondent.

SIXTH: As of 25/09/2024, the publication subject to the claim had been removed from ***APP.1 of ('A.A.A.').

SEVENTH: (...).

LEGAL GROUNDS

I

Competence and procedure

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

In turn, paragraph 2 of the same provision defines data processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

Paragraph 7 defines the data controller or responsible party as follows: "the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for their appointment may be provided by the law of the Union or of the Member States."

Finally, paragraph 15 defines "health data" as all "personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about the person's health status."

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that A.A.A. has disseminated, among others, the following personal data of B.B.B.: name and surname, ID, or address. Alongside these identifying data, the publication also refers to health data (...).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/16

Likewise, personal data processing has also been carried out from (...) to B.B.B. (...).

Finally, it should be noted that A.A.A. carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, as it is (...) ***APP.1 owned by it where the processing of personal data subject to this complaint has taken place.

III

Minimization of Personal Data

Individuals have the power of disposition over their personal data and its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection.

Thus, the Constitutional Court ruling STC 292/2000, of November 30, states that "the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession

or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.” In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set out in Article 5 of the GDPR. We highlight Article 5.1.c) of the GDPR which states that:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

The principles relating to processing are, on the one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with an intense expansive force; on the other hand, having a high level of specificity, they are mandatory norms that can be infringed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/16

However, the fundamental right to the protection of personal data is not absolute, as it may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of expression, being weighed on a case-by-case basis.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

That said, the fundamental right to freedom of information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, Personal and Family Privacy, and the Right to One's Own Image.

Thus, we will cite the Supreme Court ruling STS 50/2017, First Civil Chamber, of January 27, 2017 (appeal 2139/2015), which states:

“In this sense, it is reiterated jurisprudence (see among the most recent, and as a doctrinal summary, the judgment 605/2015, of November 3) that the abstract prevalence of the freedoms of expression and information ‘can only be reversed in the specific case by considering the relative weight of honor and privacy according to the specific circumstances at hand, provided that the information and opinions disclosed refer to matters of general interest or public relevance (either by the persons or by the subject matter), that the communication does not involve the unnecessary use of unequivocally offensive or degrading expressions, and, in the case of freedom of information, provided that they are truthful, specifying in any case that in the area of protection of the right to privacy, the criterion for determining the legitimacy or illegitimacy of the intrusions is not that of truthfulness but that of the public relevance of the disclosed fact, that is, that its communication to the public, even if true, is necessary based on the public interest of the matter being reported” (the emphasis is ours).

This is not about giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case, but rather about finding a balance between both to achieve the purpose of the former without undermining the latter. The reconciliation of both rights is nothing

new, as the European legislator mandates such reconciliation in Article 85 of the GDPR. As we have seen earlier, the fundamental right to freedom of expression is not unlimited, as the jurisprudential interpretation, when confronting it with other rights and freedoms, does not allow for its recognition in all cases and with full breadth, but may, however, be limited by other fundamental rights.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/16

must also be respected. Thus, its limitation is observed when the personal data provided is unnecessary to achieve the purpose pursued with the publication of the information.

At this point, it is necessary to bring to attention the jurisprudence that analyzes the relationship between freedom of information, on one hand, and the rights of those affected by informative content. Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, issued in case 1593/2006, states the following:

"Although the press must not overstep certain limits, particularly regarding the reputation and rights of others or the proper administration of justice, its duty is, nonetheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48)

(...), the publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any debate of general interest to society, even though the person is known to the public. Under such conditions, freedom of expression requires a stricter interpretation (...). (paragraph 50).

(...) In verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases - the freedom of expression protected by Article 10 and the right to respect for private life enshrined in Article 8 - the Court must balance the public interest in the publication of information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51) On the other hand, the aforementioned judgment of November 30, 2000, issued by the Constitutional Court in case 292/2000, reasons as follows:

"the fundamental right to data protection extends its guarantee not only to intimacy in its constitutionally protected dimension by art. 18.1 CE, but also to what this Court has sometimes defined in broader terms as the sphere of personality rights that belong to the realm of private life, inextricably linked to the respect for personal dignity (STC 170/1987, of October 30, FJ 4), such as the right to honor, expressly cited in art. 18.4 CE, and likewise, in a very broad expression of art. 18.4 CE itself, to the full exercise of personal rights. The fundamental right to data protection extends the constitutional guarantee to those data that are relevant to or have an impact on the exercise of any personal rights, whether or not they are constitutional rights and whether or not they relate to honor, ideology, personal and family intimacy, or any other constitutionally protected good.

Thus, the object of protection of the fundamental right to data protection is not limited only to the intimate data of the person but to any type of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/16

personal data, whether intimate or not, whose knowledge or use by third parties may affect their rights, whether fundamental or not, because its object is not only individual intimacy, which is protected by Article 18.1 of the Spanish Constitution (CE), but personal data. Consequently, it also encompasses those public personal data, which by being public, accessible to anyone, do not escape the control of the affected individual because their right to data protection guarantees it. Therefore, the fact that the data is personal does not mean that only data related to the private or intimate life of the person is protected, but that all data that identifies or allows for the identification of the person is covered, which

may serve to create their ideological, racial, sexual, economic profile, or of any other kind, or that serve any other purpose that, under certain circumstances, constitutes a threat to the individual.

It is also worth mentioning the ruling 27/2020, of February 24, issued by the Constitutional Court in its appeal 1379/2017, which reasons as follows:

"when the right to one's own image collides with other goods or rights constitutionally protected, particularly the freedoms of expression and information (art. 20.1.a and d CE), the different conflicting interests must be weighed, and, taking into account the specific circumstances of each case, it must be decided which interest deserves greater protection" (SSTC 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and intimacy but also with the fundamental right to one's own image, for example, in those cases where information disseminates photographs or video clips that can only be understood as mere instruments to satisfy external curiosity and have been included not with an informative function but with the purpose of quenching the expectation that, in those terms, a certain news may raise" (the emphasis is ours).

Having stated the above, it should be recalled that the information disseminated in the publication subject to this sanctioning procedure, like the image, which is the subject of analysis in much of the jurisprudence in this area, contains personal data and, therefore, all safeguards and guarantees must be applied in such a way as to ensure the fundamental right to the protection of personal data of the affected individuals.

In the specific case examined, as reflected in the Established Facts of this resolution, A.A.A. disseminated through (...) ('A.A.A.') (...) personal data of B.B.B. (identifying and health data); (...). Furthermore, the scope of the disclosure made must be taken into account, given that the publication was accessible to (...) with which ***APP.1 of ('A.A.A.') was available until the publication was removed by ***APP.1, (...) who, until then, could access the published content.

While it is true that B.B.B. (...), this does not imply the total loss of control over their personal data, according to the aforementioned jurisprudence. The personal data of ID or address (...); as well as those related to (...) are unnecessary for the purpose of information that could be understood to be pursued.

The same applies to (...) does not add value to the information that is intended to be transmitted.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violation of Article 5.1.c) of the GDPR.

IV

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

The aforementioned infringement of Article 5.1.c) of the GDPR constitutes an infringement classified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 5.1.c) of the GDPR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/16

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to gradate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a). In the case at hand, the publication of (...) personal data of B.B.B. and (...)***APP.1 of A.A.A. implies the possibility of immediate and widespread dissemination of the content, considering that (...) had at the time of the adoption of the initiation agreement of this sanctioning procedure (...) at the time the content was removed.
- The intent or negligence in the infringement (paragraph b). The dissemination of (...) the personal data of B.B.B., as well as (...), was carried out directly by A.A.A. intentionally, as evidenced by the fact that such publication was accompanied by certain evaluative considerations on their part.
- The categories of personal data affected by the infringement (paragraph g). As we have indicated, (...), such as the ID number, is considered particularly sensitive in that, if the processing of this data is not accompanied by the necessary technical and organizational measures to ensure that the person identifying with it is indeed its owner, a third party can impersonate the identity of a natural person with the risks that this entails for the privacy, honor, and property of the impersonated individual. Furthermore, special category data has also been exposed, specifically, health data of B.B.B. (...). The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 5.1.c), allows for the establishment of an administrative fine of €5,000 (five thousand euros).

VI

Processing of special categories of personal data

Article 9 of the GDPR provides as follows:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject.
- b) the processing is necessary for compliance with a legal obligation to which the data controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- c) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject;
- d) the processing relates to personal data which the data subject has manifestly made public;
- e) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity;
- f) the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject;
- g) the processing is necessary for the purposes of preventive or occupational medicine, for the

assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care or treatment, or management of health or social care systems and services, based on Union or Member State law or pursuant to a contract with a health professional and without prejudice to the conditions and safeguards referred to in paragraph 3;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/16

h) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border threats to health, or to ensure high standards of quality and safety of healthcare and of medicines or medical products, based on Union law or the laws of the Member States that establish appropriate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy,

i) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect essentially the right to data protection, and establish appropriate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when such processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the laws of the Member States or with the standards established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the laws of the Member States or the standards established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health.”

In the present case, the publication subject to this sanctioning procedure included (...) health data of B.B.B.(...).

Health data, by their nature, belong to special categories of data, regulated in Article 9 of the GDPR, which establishes a general prohibition on their processing. Therefore, their processing requires the occurrence of one of the circumstances set out in paragraph 2 of the aforementioned article that lifts the general prohibition on processing.

However, in the present case, none of the circumstances that lift the prohibition for processing such special categories of personal data are present.

Thus, in accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violation of Article 9 of the GDPR.

VII

Typification and qualification of the infringement of Article 9 of the GDPR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/16

The aforementioned infringement of Article 9 of the GDPR constitutes the commission of the infringement typified in Article 83.5, letter a) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

(...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law occurring. (...)"

VIII

Sanction for the infringement of Article 9 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm suffered (paragraph a). In the case at hand, the publication of (...) personal data of B.B.B. and (...)***APP.1 of A.A.A. implies the possibility of immediate and widespread dissemination of the content, considering that (...) had at the time of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/16

adoption of the agreement to initiate the present sanctioning procedure with

(...).

-

The intentionality or negligence in the infringement (section b). The dissemination of (...) the personal data of B.B.B., as well as (...), was carried out directly by A.A.A. intentionally, as evidenced by the fact that such publication was accompanied by certain evaluative considerations on their part.

-

The categories of personal data affected by the infringement (section g). As we have indicated, (...) contain identifying data of B.B.B., such as the ID number, a data considered particularly sensitive in that, if the processing of this data is not accompanied by the necessary technical and organizational measures to ensure that the person identifying with it is indeed its owner, a third party can impersonate the identity of a natural person with the risks that this entails for the privacy, honor, and property of the impersonated individual.

The balance of the circumstances considered, regarding the infringement committed by violating the provisions established in Article 9, allows for the imposition of an administrative fine of €5,000 (five thousand euros).

IX

Adoption of measures

The infringement in the matter at hand may lead to the imposition on the responsible party of the obligation to adopt appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe...".

In such a case, this Agency may require the responsible entity to adjust its actions to the personal data protection regulations within the timeframe determined, with the scope expressed in the Legal Grounds of this agreement.

In light of the circumstances analyzed in this resolution of the sanctioning procedure, it is understood that A.A.A. would be carrying out excessive processing of personal data, especially considering the nature of the data subject to processing. Therefore, it is considered that the continuation of the processing would entail a very serious and irreparable detriment to the rights of the potential affected parties.

It should be noted that in the agreement to initiate the present sanctioning procedure, it was agreed to impose as a provisional measure the suspension of the processing of personal data subject to complaint through the removal of the content published on ***APP.1 ('A.A.A.'). And, therefore, in order to safeguard and guarantee the rights and freedoms of the affected parties, it is agreed to elevate the provisional measure imposed to definitive status.

It is warned that failure to comply with the measures imposed by this agency in the resolution that concludes the present procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for:

-

An infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, an administrative fine of €5,000 (five thousand euros).

-

An infringement of Article 9 of the GDPR, classified in Article 83.5.a) of the GDPR, an administrative fine of €5,000 (five thousand euros).

SECOND: TO CONFIRM, elevating it to definitive, the provisional measure imposed on A.A.A., with NIF ***NIF.1, whose compliance must be evidenced the day after the notification of this resolution of the sanctioning procedure:

-

The suspension of the processing of personal data subject to complaint through the removal of the content published on ***APP.1 ('A.A.A.').

THIRD: TO NOTIFY this resolution to A.A.A., with NIF ***NIF.1.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executable, if the date of executability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid
sedeagpd.gob.es
16/16

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the LPACAP. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es